MUTSA MINING SYNDICATE

versus

CHEGUTU GOLD MINE (PRIVATE) LIMITED

and

THE SECRETARY FOR MINES AND MINING DEVELOPMENT

IN THE HIGH COURT OF ZIMBABWE
BACHI MZAWAZI J,
CHINHOYI, 24/28 APRIL / 8MAY 2026

F. Murisi, for the applicant
R.Chatereza. for the 1st Respondents
C. Chitekuteku, for the 2nd Respondents

URGENT CHAMBER APPLICATION

BACHI MZAWAZI J:[1]

Summarised facts

This urgent chamber application stems from a review application pending before this court under case number HCC74/26 brought by the applicants. An offshoot of the review application, is yet another urgent chamber application for an interim interdict which was sought and granted against the respondents under case HCCC102/26. The 1st respondent, in turn, successfully obtained leave to appeal to the Supreme court, against the said provisional order. The supreme court is currently seized with the appeal against the interlocutory relief under case SC407/26. Pending the set down and hearing of the appeal noted with the Supreme court, the 1st respondent commenced or resumed mining operations on the site subject to the review proceedings. It is this action by the 1st respondent that has given birth to

[1] Apparently, the parties are not in agreement as to whether the 1st respondent had commenced any mining operations before the issuance of the special grant to the applicant by the 2nd respondent. It seems like a material dispute of fact not subject to these proceedings.

the current urgent chamber application for leave to execute the said provisional order pending appeal.

Relief sought

TERMS OF THE FINAL ORDER SOUGHT.

That you show cause to this Honourable Court why a final order should not be made in the following terms: -

1. That the Applicant is hereby granted leave to execute the provisional order granted by this Honourable Court on 9 April 2026 in Case Number HCCC102/26 notwithstanding the pendency of the appeal noted by the 1st Respondent to the Supreme Court of Zimbabwe under Case Number SC407/26.

2. In terms of the said provisional order, the 1st Respondent, Chegutu Gold Mine (Private) Limited, its directors, shareholders, officers, employees, contractors, agents, Chinese associates, sub-contractors and all persons claiming through or under it be and are hereby interdicted and restrained from conducting any mining operations, extraction activities, drilling, blasting, excavation, processing of ore, movement of any ores, sale of ores, destroying any buildings and infrastructure on site or any other mining or allied activities whatsoever on the mining site covered by Special Grant No. 10205, pending the finalisation of the appeal in Case Number SC407/26.

3. The 1st Respondent shall pay the costs of this application on the legal practitioner and client scale.

TERMS OF THE INTERIM RELIEF GRANTED.

Pending determination of this matter on the return date, the applicant is granted the following relief: -

1. The 1st Respondent, its directors, shareholders, officers, employees, contractors, agents, Chinese associates, sub-contractors and all persons claiming through or under it be and are hereby suspended from conducting any mining operations, extraction activities, drilling, blasting, excavation, processing of ore, movement of any ores, sale of ores,

destroying any buildings and infrastructure on site or any other mining or allied activities whatsoever on the mining site covered by Special Grant No. 10205, with immediate effect.

Preliminary point

A point *in limine*, that the applicant's resolution was not signed by one of the syndicate members was raised by the 1st respondent. An affidavit purportedly signed by the defecting syndicate member distancing himself from both the signatures appearing in the resolutions attached to the founding affidavit in this case and case HCCC102/26 was filed appended to the 1st respondent's opposing papers. On that basis the authority of the deponent of the applicant's founding affidavit to litigate on behalf of the syndicate became the subject of scrutiny by the 1st respondent. They argued that, that was a defect invalidating the resolution and the founding affidavit.

Mr *Murisi,* for the applicant challenged the authenticity of the affidavit and signatures attached to the opposing camp's papers as not emanating from one of its members. They even doubted the circumstances surrounding the obtaining of such an affidavit, if indeed it originated from one of their own.

The 2nd respondent Mr C*hitekuteku* in favour of the applicants, argued that s61 of the Mines and Minerals Act Chapter 21:05 allowed an accredited syndicate member to litigate on behalf of a syndicate without relying on a resolution. Neither party favoured the court or backed its position with legal authority

Given this stalemate, especially in the absence of any legal support, the court directed that the said syndicate member be brought to court to clarify the issues noted above. On the return date, the day of the hearing, the member was not present. Mr *Chatereza* for the 1st respondent claimed that the court had instructed the applicant, not the 1st respondent to secure the attendance of the said syndicate member. From my notes and those of the other interested parties, it seems the directive was to the party which had attached the dissenting affidavit. Logically, it was the 1st respondent who had averred and had the onus to prove.

I dismissed the point *in limine* without further ado. The law is clear. A syndicate is neither a body corporate or a juristic person. It is an association of individuals with a common goal. Rule 11 of the high court rules 2021 defines and delineates the powers, liabilities and responsibilities of an association and its members. An associate can bring an action or lawsuit

on his own, using the name of the syndicate without a resolution from fellow associates. I associate myself with BHUNU JA's detailed explanation on similar provisions of the then old 1971 rules in, *BDO Zimbabwe Chartered Accountants vs Robin Vela and the Auditor General of* Zimbabwe SC61-22.

ZHOU J. as he then was, in *Roselex Mining Syndicate vs Mr D Gavi the Registered Holder* of *Confidence 12 Mine* 7957 HH680/20, on page 2, categorically stated that,

"The second ground of objection pertaining to the authority from *Roselex Mining (Pvt) Ltd* also fails because the Syndicate, not being a juristic *persona,* requires no resolution. This is so because in essence it is the associates suing in its name."

As correctly, submitted by *Mr Chitekuteku*, s61(3) of the Mines and Minerals Act Chapter 21:15 requires the registration of an accredited associate of a mining syndicate who then acts on behalf of the syndicate as stipulated in the proviso.

In *casu,* the applicant inadvertently attached a resolution. This in itself was subtly and misleadingly contrary to the law, indicative of the need for authorisation from its members. As the law as stated above stands, the impugned resolution, defective or not is of no moment.

Analysis, the facts evidence and the law on the merits

Issues

The remaining issue on the merits is, whether or not the applicant is entitled to the relief sought? In other words, has applicant made a case for an urgent application for leave to execute pending appeal?

Application of the law to the facts

The law in respect to applications of this nature has been outlined in several cases. *MAVANGIRA* J (as she then was) in *Trustco Mobile (Pty) Ltd & Anor* v *Econet Wireless (Pvt) Ltd & Anor*[2r] stated that:

"In *Whata* v *Whata* 1994 (2) ZLR 277 (S) at 281 B-C Gubbay CJ stated:

'The principle to be applied by the court considering the grant of an application for leave to execute on a judgment under appeal is what is just and equitable in all circumstances. The enquiry normally involves assessing such factors as: the potentiality of irreparable harm or prejudice being sustained by either the successful or the losing party, and, if by both, the balance of hardship or convenience; and

[2] HH158/11

the prospects of success on appeal, including whether the appeal is frivolous or vexations or has been noted for some indirect purpose, such as to gain time or harass the other party. See, the *South Cape Corporation* case supra at 545 E-G.' (*South Cape Corporation (Pty) Ltd Eng Mgmt Svcs (Pty) Ltd* 1997 (3) SA 534 (A)'."

In *Econet* v *Telecel Zimbabwe (Pvt) Ltd* 1998 (1) ZLR 149 (H) Smith J, had restated the principle in *Whata* above, at 154F-9 as follows:

"In determining an application for leave to execute pending an appeal, the court must have regard to the "preponderance of equities", the prospects of success on the part of the appellant and whether the appeal has been noted without "the *bona fide* intention of seeking to reverse the judgment but for some indirect purpose e.g. to gain time or to harass the other party": see *Fox and Carney (Pvt) Ltd* v *Carthew-Gabriel (2*) 1997 (4) SA 970 (R) and *ZDECO (Pvt) Ltd* v *Commercial Careers College (1980) (Pvt) Ltd* 1991 (2) ZLR 61 (H)."

Central to the dispute at hand, are gold reserves which from the date the leave to appeal to the Supreme court was granted to the date of the delivery of this ruling, the 1st respondent is unilaterally mining. It is beyond dispute that gold is finite non-replenishable resource. The 2nd respondent created a mess. It issued a special grant in an area purportedly reserved by the 1st respondent. Upon realising its mistake, whether genuine or not, it cancelled the special grant. Applicant citing procedural irregularities-initiated litigation against both respondents. This court by virtue of s345(1) Mines and minerals Act, remitted the matter back to the second respondent. The second respondent after several delays then complied with the court order determined the matter, but came to the same conclusion that the special grant be terminated.

Applicant once again brought the 2nd respondent's determination for review citing further procedural irregularities. This application did not stop the 1st respondent from continuous and unabated mining operations attracting the interim interdict in case HCCR102/26. Logically, in the absence of written reasons, the basic considerations for the court in case, HCCR102/26, to grant the interdict are similar to those faced by this court. Undeniably, from the perspective that the gold mineral is exhaustible, and the applicants have *prima facie* interests still to be effectively determined, at the mining site, there is actual and irreversible harm.

Since, there are several incomplete and suspended cases, interim orders waiting for return dates, noted supreme court appeal, applications for joinder and condonations, there is clearly no other available remedy. For the second respondent to revisit the matter in terms of s345(1) if need be, the review case in HCC74/26 needs to be determined first. In addition, there is another figment of the same case pending in the Supreme court. The onus to

prosecute the supreme court appeal lies with the litigant who instituted those proceedings. It seems the 1st respondent is enjoying the best of both worlds. It notes an appeal against a prohibitory order, and then proceeds to enjoy the prohibited fruit.

The balance of convenience in my view, favours the applicant. There is no prejudice if the 1st respondent is temporarily barred from mining pending the determination of the review application in case HH74/26, or the appeal. If the 1st respondent has a stronger case both on the pending review and appeal then they have nothing to lose if operations are temporarily stopped. This is where it can be figuratively said '*May the best man win.*'In fact, the granting of the provisional order will compel the expedition of the numerous suspended cases by either party.

It cannot be ruled out that when this court per MUZOFA J granted the impugned interdict, it perceived the application having prospects of success. Indeed, as argued by *Mr Chatereza* as a freshly introduced point of law of issue estoppel, the same court then granted leave to appeal whose main ingredient is the possibility of prospects of success on appeal. In the absence of the record of the proceedings one cannot safely say that was MUZOFA J's only deciding factor. There may have been other several factors recognised by the law.

Further, the second respondent the architect of the dissent, was not opposed to the application[3]. This in itself, without pre-empting the review proceedings which are not before me, shows they do have weak legs to stand on in the application for review. It speaks volumes to the prospects of success of the application for review.

Disposition

I am persuaded by the arguments advanced by *Mr, Murisi* for the applicant and Mr *Chitekuteku*. There is a likely hood of prospects of success in the application for review. The issue of issue estoppel does not arise as the court that granted both the interdict and the leave to appeal weighed in the factors of prospects of success.

From the foregoing, the applicants have satisfied all the elements of an application for an interim relief for leave to execute MUZOFA J' s provisional order pending appeal.

[3] The 2nd respondent is the record keeper of all mining operations in the country. It acts through its designated officers. It ought to have known that the site in dispute was a reserved area before granting the special grant. It is imbued with statutory powers to rectify the same, transparently and accountably.

There is no justification for punitive costs on either side, as it is clear, none of them is committed to pursuing legal recourses addressing the crux or core of the dispute so as to bring finality to litigation.

Accordingly, the interim relief is granted as captured in the relief sought segment above.

Murisi and Associates applicant's legal practitioners
Dube Manikai and Hwacha the 1st respondent's legal practitioners
Civil Division of the Attorney General